

JEFFERSON CAPITAL SYSTEMS, LLC VS. PATRICK

CASE NUMBER: 26CVG-00566

Tentative Ruling on Motion to Compel Arbitration: Defendant Shawn A. Patrick moves to compel arbitration on the Complaint filed by Plaintiff Jefferson Capital Systems, LLC. There is no proof of service indicating the motion was served on Plaintiff and no Opposition has been filed. Without notice to Plaintiff, the motion is **DENIED** without prejudice. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

IN RE: KINSELLA

CASE NUMBER: 26CV-0211215

Tentative Ruling on Petition for Change of Name: Petitioner Vera Anne Kinsella aka Megan Anne McAllister seeks to change her name to Megan Anne McAllister. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

KUHN, ET AL. VS. DIGNITY HEALTH, ET AL.

CASE NUMBER: 23CV-0203118

Tentative Ruling on Applications to Appear Pro Hac Vice: Andrew G. Jackson and Daniel I.A. Smulien, attorneys who are licensed and reside in Minnesota and New York, respectively, seek admission pro hac vice in order to represent Defendant Medtronic, Inc. in this matter. California Rule of Court, Rule 9.40 provides the procedural requirements for a pro hac vice application and requires a verified application with the following information:

- (1) the applicant's residence and office address;
- (2) the courts to which the applicant has been admitted to practice and the dates of admission;
- (3) that the applicant is a member in good standing in those courts;
- (4) that the applicant is not currently suspended or disbarred in any court;
- (5) the title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
- (6) the name, address, and telephone number of the active member of the State Bar of California who is attorney of record.

CRC 9.40(d).

Rule 9.40(c)(1) requires service of the application on all parties that have appeared and on the State Bar. The State Bar also requires payment of a fee. The notice requirements of CCP § 1005 apply and proof of service in accordance with CCP § 1013a is required.

The Applications are verified and contain all the information required by Rule 9.40(d). The Court finds that the Applications have been properly noticed and that the fee was paid to the State Bar for each applicant. The Applications are **GRANTED** and the Court will execute the proposed Orders.

IN RE: LANE

CASE NUMBER: 26CV-0211208

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. When a petition to change the name of a minor is brought by one parent only, the non-petitioning parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). Additionally, proof of publication is required before the Court can consider granting

the Petition. Proof of service of a notice of hearing or order to show cause on the father has not been submitted, nor has proof of publication. Unless proof of timely service on the father, as well as proof of publication, is submitted at hearing, the Court intends to the Petition and close the file.

MALINOVSKY VS. CROSBY, ET AL.

CASE NUMBER: 26CV-0211172

Tentative Ruling on Demurrer: Defendants Shasta Union High School District, Owen Crosby, Jason Rubin, and Heath Bunton demur to each cause of action alleged in the First Amended Complaint (FAC) filed by Plaintiff Joseph L. Malinovsky on July 10, 2026. Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ross Nott provides evidence of sufficient efforts to meet and confer.

Request for Judicial Notice. Defendant request the Court take judicial notice of the Government Tort Claim filed by Plaintiff on or about December 16, 2025 pursuant to Evid. Code §§ 451, 452, and 453. The request is granted.

Merits. A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff’s causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The FAC alleges three causes of action – Intentional Infliction of Emotional Distress (IIED), Negligent Infliction of Emotional Distress (NIED), and Violation of a Mandatory Duty. Defendants demur to each under several theories.

Duty. Defendants allege that Plaintiff lacks the special relationship to give rise to duty, which is required for a negligence claim.

There is no independent tort of negligent infliction of emotional distress; rather, “[t]he tort is negligence, a cause of action in which a duty to the plaintiff is an essential element.” (*Potter v. Firestone Tire & Rubber Co.*, *supra*, 6 Cal.4th at p. 984.) “That duty may be imposed by law, be assumed by the defendant, or exist by virtue of a special relationship.”

Ragland vs. U.S. Bank National Assn. (2012) 209 Cal. App. 4th 182, 205.

Plaintiff alleged that being allowed on campus in order to provide services to a different student gave rise to a duty, however, this argument was abandoned in the Reply. The other theory of duty raised is based on Plaintiff’s minor child being a student of SUHSD. While school districts have a duty to students who are supervised by district staff and required to be on campus, that duty does not generally extend to parents. *Steven F. v. Anaheim Union High School District* (2003) 112 Cal 4th 904. Because there is no duty owed to Plaintiff himself, as opposed to his minor child who was a student at the school, claims sounding in negligence cannot stand and the Demurrer on this ground as to the Second Cause of Action is **SUSTAINED**. Plaintiff has not shown that any fact could correct the defect, therefore, leave to amend will not be granted.

Official Proceedings Privilege. A privileged publication or broadcast is one made in the proper discharge of an official duty. Civ. Code § 47(a). The privilege also applies in “any (1) legislative proceeding, (2) judicial